

within thirty days of filing. (Prob. Code, § 9256.) The three-month time limit after rejection only applies if the plaintiff receives a notice of rejection informing him that there is a three-month time limit. (Prob. Code, § 9370, subd. (a)(3).)

AVILA filed his original action against DANIEL MOORE on December 1, 2021. DANIEL MOORE died on May 10, 2024. (Declaration of Nicholas J. Anderson in Support of Motion at ¶ 5, Exhibit C.) AVILA filed a creditor's claim against DANIEL MOORE's estate. (*Id.* at ¶ 6, Exhibit D.) More than thirty days have passed without action on the claim. (*Id.* at ¶ 9.) AVILA never received a notice telling him he had three months to make this motion in court, so the three-month time limit does not apply to him. All requirements for ZACHARY MOORE, as DANIEL MOORE's estate representative, to be substituted into this case are satisfied.

AVILA's motion to substitute in ZACHARY MOORE as a defendant solely in his capacity as personal representative of the estate of DANIEL MOORE is granted.

CHAMPION MORTGAGE v. FREDERICK COOLEY; ET AL.
Case No. FCS058061

Defendant's Motion to Compel CHAMPION's Further Responses to Form Interrogatories, Set Two, Special Interrogatories, Set Two, Requests for Admission, Set One, and Requests for Production, Set Two

TENTATIVE RULING

Defendant FREDERICK MARC COOLEY moves to compel Plaintiff CHAMPION MORTGAGE COMPANY ("CHAMPION") to further respond to certain of his discovery requests.

On March 30, 2026 the court specifically authorized Defendant to file this motion. However, the court only authorized the motion to discuss Defendant's requests for admission #10, 12, 33, and 34, issues regarding provision of a privilege log, and Plaintiff's response to Form Interrogatory 17.1 insofar as it pertains to requests for admission #6 and 7. The court disregards all other discovery issues raised in this motion other than those specifically identified in its March 30, 2026 order.

Requests for Admission. Request #10 asks CHAMPION to admit it was no longer the beneficiary of the relevant deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to enforce the debt" at that time. This is not a sufficiently direct response to the question posed. CHAMPION must further respond.

Request #12 asks CHAMPION to admit it had no right to foreclose on the deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to commence foreclosure" at that time. This is a sufficiently direct response to the question posed. CHAMPION need not further respond.

Requests #33 and #34 ask CHAMPION to admit it lacked standing to bring the instant judicial foreclosure action on February 8, 2022 and lacked standing to maintain the action thereafter. CHAMPION respectively admits it “was not the proper party to initiate suit” and “was not the proper party to maintain suit.” There are sufficiently direct responses to the questions posed. CHAMPION need not further respond.

Form Interrogatory 17.1. Form Interrogatory 17.1 asks a party to provide detailing information supporting its responses to requests for admission that are anything but unqualified admissions. With regard to requests for admission 6 and 7, wherein CHAMPION admitted it assigned all rights in the relevant deed of trust to Mortgage Asset Management, CHAMPION provides sufficient detailing information. CHAMPION need not further respond.

Privilege Log. CHAMPION has provided a privilege log supporting its responses to Defendant’s requests for production of documents wherein it withheld documents on claims of privilege, though it served that privilege log very late (April 23, 2026). A privilege log that provides sufficient information to evaluate the claims of privilege is sufficient; there is no requirement that each document in the privilege log have a particularly marked date of preparation, per se. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 [general standard for evaluating sufficiency of log].) CHAMPION need not further respond.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2033.290, subdivision (d) [requests for admissions] require sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds that sanctions are appropriate. Defendant was required to file an initial, lengthy motion to compel, which led to informal discovery conferences, Plaintiff’s production of a substantial amount of discovery, and then to the present discovery motion. The Court finds that sanctions against Plaintiff in the amount of \$13,500 is appropriate. The Court awards a reasonable amount of hours spent at 30 hours at a reasonable rate of \$450 per hour.

Conclusion. Defendant’s motion is granted as follows: CHAMPION must further respond to Request for Admission #10. Sanctions are imposed upon Plaintiff as set forth above. The sanctions are due and payable within 30 days of the date of service of this order. The motion is otherwise denied.

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